

		Barnes (2010) 182 Cal. App.4th 953, 963-964 [settlement negotiations between opposing counsel are protected activity].) Plaintiffs contend the litigation privilege does not apply because their emotional distress claims arise from conduct, not communications. (See Kimmel v. Goland (1990) 51 Cal.3d 202, 211 [noting “distinction between injury allegedly arising from communicative acts, i.e., the attorney's testimony, and injury resulting from noncommunicative conduct, i.e., the invasion of privacy resulting from the attorney's eavesdropping”].) More specifically, Plaintiffs contend the following actions caused them emotional distress: Instructing an employee to refuse Plaintiffs’ rent payment; demanding rent at the full Unit L104 rate for months when Plaintiffs were displaced in a smaller unit, contradicted by BGN's own written agreement; and rejecting a settlement offer exceeding Defendants' own prior demand not because the money was insufficient but to maintain leverage over the unrelated Mold Action. Plaintiffs attempt to recast BGN’s litigation activity as “noncommunicative conduct” is unpersuasive. The gravamen of Plaintiffs’ claims remains BGN’s initiation and prosecution of the UD Action and related settlement discussions. Courts have consistently held that claims arising from litigation activities, including settlement communications, are barred by the litigation privilege. (Seltzer, supra, 182 Cal.App.4th 953; Dowling, supra, 85 Cal.App.4th 1404; Home Ins. Co. v. Zurich Ins. Co. (2002) 96 Cal.App.4th 17.) The litigation privilege therefore applies. Accordingly, Plaintiffs have failed to establish minimal merit of their emotional distress claims against BGN. Tentative Ruling: Defendant BGN Acquisitions La Habra Hills LP’s (“BGN”) Special Motion to Strike the Complaint under the Anti-SLAPP Statute is GRANTED. Defendant to give notice.
8	Herbas vs. Ean Holdings, LLC 2023-01360506	Motion to Dismiss Defendant Lauren A. Boisdore moves to dismiss plaintiff Alejandra Ortiz’s Complaint, for her failure to appear for her Court ordered deposition on January 16, 2026.

	“[T]erminating sanctions are to be used sparingly, only when the trial court concludes that lesser sanctions would not bring about the compliance of the offending party.” (R.S. Creative, Inc. v. Creative Cotton, Ltd. (1999) 75 Cal.App.4th 486, 496.) “The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. ‘Discovery sanctions “should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.” ’ [Citation.] If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. ‘A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.’ [Citation.]” (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 992 (Doppes) (Footnote 5 omitted.).) Before issuing terminating sanctions, the court should usually grant lesser sanctions such as orders staying the action until the derelict party complies, or orders declaring matters as admitted or established if answers are not received by a specified date, often accompanied with costs and fees to the moving party. (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 796.) Plaintiff violated the Court’s 12-30-25 Order compelling Plaintiff to appear for her deposition by no later than 1/30/26. (Canale Decl., ¶ 3, Ex. A; ROA 170.) Based on Plaintiff’s email stating Plaintiff was available on any day except 1/13/25, Defendant noticed Plaintiff’s deposition for 1/16/26. (Canale Decl., ¶¶ 4-5, Exs. B-C.) However, Plaintiff failed to appear for her deposition. (Canale Decl., ¶ 6, Ex. D.) The moving party must not only show that there was violation of the court’s order, but that such violation was willful. (Doppes, supra, 174 Cal.App.4th at 992.) Although Defendant has shown Plaintiff failed to comply with the Court’s 12-30-25 Order, there is
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		no showing that the violation was willful. Further, there has been no incremental approach to sanctions and lesser sanctions of issue, evidentiary, and/or monetary sanctions are appropriate at this time. Tentative Ruling: Defendant's request for terminating sanctions is DENIED. <u>Sanctions:</u> Defendant requests sanctions in the amount of \$2,573.70 calculated as follows: \$300/hr. x. 6.4hrs.; plus \$60 filing fee and \$653.70 for a Certificate of Non-Appearence. The amount requested is excessive and is reduced to \$1,313.70 (\$300/hr. x 2hrs. + \$60 filing fee + \$653.70).] Tentative Ruling: Defendant's request for monetary sanctions is GRANTED in the reduced amount of \$1,313.70. Plaintiff is ORDERED to pay \$1,313.70 in monetary sanctions to Defendant within 20 days' notice of this ruling. Plaintiff is ORDERED to comply with the Court's 12-30-25 Order and appear for her deposition within 20 days' notice of this ruling. The Court warns Plaintiff that failure to comply with the Court's Order will result in more severe sanctions, which may include terminating sanctions. Plaintiff to give notice.
9	Huynh vs. Williams 2024-01436961	1. Motion for Reconsideration 2. Case Management Conference Parties have stipulated to continue the motion to 09/14/2026 at 1:45 pm in Department C15. The Case Management Conference is hereby also continued to 09/14/2026 at 1:45 pm in C15.